

Disposition

This is the second time Plaintiff has failed to properly serve Defendant.

This Motion will be dropped.

5. 9:00 AM CASE NUMBER: L25-03863
CASE NAME: WELLS FARGO BANK, NA VS. NICHOLAS TORRE
MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLTF'S REQ FOR
ADMISSIONS AS ADMITTED FILED BY PLTF. ON 04/14/2026
FILED BY: WELLS FARGO BANK, NA

***TENTATIVE RULING**

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration, on 4/14/26.

Plaintiff attached the particular facts at issue, numbered One through Nine and entitled, "Set One," in Exhibit One to their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of the Motion and Declaration, indicating mail service to Defendant at a Walnut Creek address.

Plaintiff then filed an Amended Notice of the Motion on 5/4/26, and also filed a proof of service indicated that this Amended Notice was served by mail at an Orinda address, the same Orinda address that Defendant listed on his Answer. The Amended Notice, however, did not contain any points and authorities, and did not contain the discovery requests at issue.

No response has been filed by the Defendant.

This court finds that there is no service of the Motion on Defendant, since the address used for notice of the Motion is a Walnut Creek address, and there is no evidence to suggest that Defendant resides at that address.

Disposition

This Motion will be continued to 10/6/26, 9am.

Plaintiff to provide notice of Motion and new hearing date to Defendant.

Court to file Order.